SOUTH MARSTON
PARISH COUNCIL

Response to S/COND/22/0315 : Character Area Design Code South Marston East

24.5.2024

South Marston Parish Council welcomes this step forward in progressing delivery of the South Marston expansion. There is much in the document that we find acceptable, but several issues we believe need addressing to provide an appropriate framework for detailed plans.

1. Missing information

- There is no mention in the CADC document of housing numbers or density. This is required to confirm adherence to Local Plan policies NC3 and RA3 which specify an upper limit of 500 dwellings within the South Marston expansion. It is inherent in the grant of planning permission for this development and should not be exceeded. The housing numbers and density are also crucial to judge how the sustainability of the Phase 1 build is affected by the agreed trigger points on surrounding infrastructure, including appropriate road, footpath and cycleway access.
- We are surprised, given the detailed work on walking and cycling networks, that there is no mention in the relevant CADC sections of the of formal list of 'Key Destinations' in the approved Strategic Design Code (para 6.9, page 90). It would be appropriate for the CADC to include these to ensure that the final designs of the housing parcels can satisfy the connectivity criteria.
- There is no mention or guidance on slab levels (see 2 below) of the various housing parcels.

2. Accommodating Surface Water/Flood Mitigation measures.

We note that the Regulating Plan on page 23 shows the planned swale running south from the Primary Street and then east to Basin 'A' opposite to the Carpenters Arms. This should be shown as extending north to the Manor Park/Magdalene Close ditch as now agreed between the Parish Council, the Lead Local Flood Authority and the Applicant as part of the latest Surface Water Management/Flood Mitigation Reserved Matter process.

This is also related to the overall design of Phase 1 housing. Firstly, there is no mention of managing slab levels immediately south of Bridleway 4, where flood water currently collects (cf South Marston Parish Council Flood Report published in October 2023).

Raising the slab levels above current ground levels will displace flood water onto roads and roadside ditches which are not large enough to cope. Peak flood water needs to be intercepted on its west-to-east flow and diverted south to Basin A. In the area of this Phase 1 CADC, the stretch of this swale with appropriate flood exceedance allowance between the Bridleway 4 (The Leaze) culvert and the Link Road is missing from the Regulating Plan on page 23.

Slab levels also have an impact on the height of culverted footpaths and roads crossing the main north/south swale and the drainage of the Bridleway once it is re-surfaced.

3. Walking and Cycling - local

We appreciate that the additional detail supplied within the CADC has gone some way towards delivering the requirement for a safe route for pedestrians and cyclists to the expanded school. This was missing from the approved SDC proposals. The cycleway/pedestrian route in the SDC will not provide access to the primary school until Phase 2 South Marston West and the new Hall and Car park are constructed, many years into the future.

We are therefore pleased to see the following in the CADC:

- Two pedestrian cycle accesses have been indicated on the CADC Regulating Plan (p23) in the approximate places required for access across Bridleway 4 though Vicarage Gardens. These can provide safe access to reach the Primary School as soon as the expanded school car park and adjacent cycleway is in place.
- Bridleway 4 will be resurfaced within this CADC area.

Having established in the CADC the potential for these two routes through the housing parcel immediately south of the bridleway, some other aspects of the CADC now require amendment.

- <u>The routes to school from each of the CADC parcels should be fit for purpose ie, for pedestrians, parents with buggies and children on bikes.</u> If this statement was inserted in the CADC, it would be very helpful then in assessing whether the eventual detailed plans have delivered this.
- Those routes are partly on tertiary streets. The generic guidance given by the CADC on tertiary street design would not be sufficient to guarantee meeting the first bullet point above. It is notable that tertiary streets are described as being for access to housing only, which would not be the case with these particular routes.
- We anticipate that, in the final design of the housing parcels, there would need to be minor tweaks to the line of footpath and cycleway routes to deliver the first bullet point – we would like it confirmed that this would still be in broad accordance with the CADC as it currently stands.

4. Walking and Cycling: wider connectivity

To be in accordance with the South Marston Neighbourhood Plan, strategic cycleway routes are required east/west and north/south.

For more general walking and cycling, we note that the Strategic Design Code cannot deliver, at the moment, a safe route for pedestrians and cyclists to all 'Key Destinations' listed in that document. It fails to provide a safe east/west cycle route to reach the Keypoint bridleway and thence to Gablecross Roundabout and the Eastern Flyer into Swindon.

We understand that efforts will continue to find a solution to this (as outlined in the Planning Officer's delegated report on granting approval for the SDC).

What we cannot accept, is that this CADC submission has fudged the failure to provide wider safe connectivity for the Nightingale Corner/Marston Gate housing parcels. The 'Key Destination' list from the SDC, which includes Keypoint and Gablecross is not repeated in the CADC, presumably to avoid the issue being raised.

The claim in the CADC that the 'main' cycle route out of the village to educational and other destinations would be by using the rail cycleway/footbridge across to the A420 fails to mention that this will not exist until way after both South Marston East and South Marston West (550 dwellings) have both been completed.

Quoting from the S106: *5.9 To pay to the Council the Footpath 5 Bridge Contribution (£984,270) in two equal instalments prior to Occupation of 150th Dwelling and 750th Dwelling.*

We would also suggest that, even when constructed, it will never be appropriate for many wheelchair users or for completing shopping trips with heavy bags.

The CADC references to wider connectivity are simply not true.

Whilst understanding the current difficult position that the failure to provide connectivity to the west has created, we believe this should be acknowledged within the CADC, so that, if and when it is resolved, the appropriate impact on CADC proposals can be adjusted.

5. Bridleway provision – no mention.

The Strategic Design Code p96 makes specific statements about the importance of providing safe connected horse-riding routes within South Marston, in particularly identifying new routes (6.18) and creating safe crossings (6.20).

The CADC makes no reference to this. We are particularly concerned about the current bridleway that runs southeast from Rowborough, which uses Rowborough Lane as an access onto the existing Old Vicarage Lane.

In early discussions with developers, a potential new horse-riding route was identified from Bridleway 4 alongside the proposed 3.5 shared access cycleway that runs down to Old Vicarage Lane. This would complete a horse-riding circuit, provided safe crossings were created across the Link Road and the new road connection loop back onto Old Vicarage Lane.

6. Built Form

The South Marston Neighbourhood Plan limits housing height to two storey housing except for 'landmark locations' where 2.5 or 3 storey is acceptable. Looking at the 'landscape-led

Landmarks' indicated on the Mandatory Coding plan on p 49, two gateway areas are identified.

Page 52 states that 3 storey dwellings are allowable at 'gateway locations'. We agree to this at the eastern gateway where the Primary Street is entered from Old Vicarage Lane

We do not accept that it is appropriate at the western' gateway'. This will provide a dominating presence overlooking land that was designed in the South Marston Neighbourhood Plan as retaining a countryside feel. It will be too visible to locations on lower ground further south (South Marston Farm) and detract from the enjoyment of the adjacent green open space.

The Design Code for all Primary Street frontages (p50) allows both 2.5 and 3 storey dwellings – we object to this generic statement as it is not in compliance with the Neighbourhood Plan.

We do accept, however, that special circumstances apply on all dwellings that front towards the railway line and are identified as requiring noise mitigation. It is anticipated that there will be significant landscaping, with copses of trees between the pedestrians/cycle leisure routes and the housing. We would agree that, for these dwellings only, a noise barrier for other housing could be created by massing of buildings and 2.5 storey heights.

We object to desire to make of the proposed 'Primary Street Frontage (page 50) offer a more 'urban feel'. The overarching desire of the South Marston Neighbourhood Plan is to preserve a 'rural feel' throughout the South Marston expansion area. Whereas we would accept a more uniform feel, and even some continuity in the frontages, this should not create the impression of being an urban housing estate.

7. Parking arrangements

We believe that the CADC statements relating to on-street parking bays should include the following 'On-street parking bays that divert footways around them on streets that are anticipated to carry significant pedestrian and cycle traffic should be avoided'.

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